

YOWELL RANCH HOMEOWNERS ASSOCIATION
RECORDS PRODUCTION POLICY
Effective January 1, 2012

This Records Production Policy was approved by the Board of Directors for YOWELL RANCH HOMEOWNERS ASSOCIATION on the 5th day of October 2011.

I. Copies of Association records will be available to all Owners upon proper request and at their own expense. A proper request:

- a. is sent certified mail to the Association's address as reflected in its most recent management certificate;
- b. is from an Owner, or the Owner's agent, attorney or certified public accountant; and
- c. contains sufficient detail to identify the records being requested.

II. Owners may request to inspect the books and records or may request copies of specific records.

- a. If the owner makes a request to inspect the books and records, then the Association will respond within **10 business days** of the request, providing the dates and times the records will be made available and the location of the records. The Association and the owner shall arrange for a mutually agreeable time to conduct the inspection. The Association shall provide the owner with copies of specific documents upon the owner paying the Association the cost thereof.
- b. If an owner makes a request for copies of specific records, and the Association can provide the records easily or with no cost, then the Association will provide the records to the owner within 10 business days of the owner's request.
- c. If the owner makes a request for copies of specific records, the Association shall send a response letter advising on the date that the records will be made available (within **15 business days**) and the cost the owner must pay before the records will be provided. Upon paying the cost to provide the records, the Association shall provide the records to the owner.

III. The Association hereby adopts the following schedule of costs:

<u>COPIES</u>	10 cents per page, for a regular 8.5" x 11" page 50 cents per page, for pages 11" x 17" or greater Actual cost, for specialty paper (color, photograph, map, etc.) \$1.00 for each CD or audio cassette \$3.00 for each DVD
<u>LABOR</u>	\$15.00 per hour for actual time to locate, compile and reproduce the records (can only charge if request is greater than 50 pages in length)
<u>OVERHEAD</u>	20% of the total labor charge (can only charge if request is greater than 50 pages in length)
<u>MATERIALS</u>	Actual costs of labels, boxes, folders, and other supplies used in producing the records, along with postage for mailing the records

- IV. The Association hereby adopts the following form of response to Owners who request to inspect the Association's Books and Records:

YOWELL RANCH HOMEOWNERS ASSOCIATION
RESPONSE TO REQUEST TO INSPECT ASSOCIATION RECORDS

_____ (date)

Dear Homeowner:

On _____, the Association received your request to inspect the books and records of the Association. The books and records of the Association are available for you to inspect on regular business days, between the hours of 9 a.m. and 5 p.m., at the office of _____, located at _____, Austin, Texas _____.

Please contact the Association's manager at _____ (phone number) to arrange for a mutually agreeable time for you to come and inspect the books and records. Please be advised that if you desire copies of specific records during or after the inspection, you must first pay the associated costs before the copies will be provided to you. A schedule of costs is included with this response.

Very truly yours,

Yowell Ranch Homeowners Association

- V. The Association hereby adopts the following form of response to Owners who request copies of specific records:

YOWELL RANCH HOMEOWNERS ASSOCIATION
RESPONSE TO REQUEST FOR ASSOCIATION RECORDS

_____ (date)

Dear Homeowner:

On _____, the Association received your request for copies of specific Association records. We are unable to provide you with the requested records within 10 business days of your request. However, the requested records will be available to you no later than 15 business days after the date of this response.

In order to obtain the records, you must first pay the Association the cost of providing the records to you. The estimated cost to obtain the records you requested is \$_____. Upon receiving payment, the Association will mail the requested documents to you. You may also make payment and pick up the documents in person at the office of _____, located at _____, Austin, Texas _____.

Very truly yours,

Yowell Ranch Homeowners Association

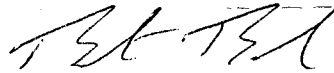
- VI. If the estimated cost provided to the Owner is more or less than the actual cost of producing the documents, the Association shall, within 30 days after providing the records, submit to the owner either an invoice for additional amounts owed or a refund of the overages paid by the Owner.

- VII. Unless authorized in writing or by court order, the Association will not provide copies of any records that contain the personal information of an owner, including restriction violations, delinquent assessments, financial information and contact information (other than an owner's address); additionally, no privileged attorney-client communications or attorney work product documents will be provided; and no employee information (including personnel file) will be released.
- VIII. With regards to the inspection of ballots, only persons who tabulate ballots under 209.00594 (TPC) may be given access to the ballots cast in an election or vote.

CERTIFICATION

"I, the undersigned, being the President of Yowell Ranch Homeowners Association, Inc. hereby certify that the foregoing Resolution was adopted by at least a majority of the Yowell Ranch Homeowners Association Board of Directors."

By:



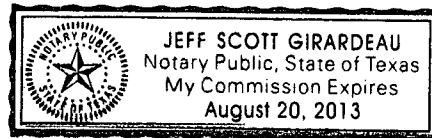
Brent Baker, President

SUBSCRIBED AND SWORN TO BEFORE ME, the undersigned authority, by the above-mentioned Affiant on this the 5 day of October, 2011, to certify which witness my hand and seal of office.



NOTARY PUBLIC, State of Texas

After Recording Return TO:
Mary Arnold
RealManage
10000 Pecan Park Blvd. Suite 100
Austin, TX 78750
✓ #19
③ E 5203





70 2011 00040303

Bell County
Shelley Coston
County Clerk
Belton, Texas 76513

Instrument Number: 2011-00040303

Recorded On: November 21, 2011 As Recordings

Parties: YOWELL RANCH HOMEOWNERS ASSOCIATION
To EX PARTE

Billable Pages: 3
Number of Pages: 4

Comment:

(Parties listed above are for Clerks reference only)

**** Examined and Charged as Follows: ****

Recordings	19.00
Total Recording:	19.00

***** DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT *****

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY
because of color or race is invalid and unenforceable under federal law.

File Information:

Document Number: 2011-00040303
Receipt Number: 120504
Recorded Date/Time: November 21, 2011 10:38:19A
User / Station: G Gomez - Cash Station 1

Record and Return To:

REALMANAGE
ATTN: MARY ARNOLD
10800 PECAN PARK BLVD, STE 100
AUSTIN TX 78750



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property
Records in Bell County, Texas

Shelley Coston
Bell County Clerk